



SPONSOR: Rep. Harris & Sen. Hoffner
Reps. Bolden, Burns, Bush, Chukwuocha, Gorman,
Griffith, K. Johnson, Lambert, Lynn, Minor-Brown,
Morrison, Neal, Ortega, Romer, Ross Levin, Snyder-Hall,
Osienski; Sens. Sokola, Townsend, Lockman, Paradee,
Pinkney, Sturgeon

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 180

AN ACT PROPOSING AN AMENDMENT TO ARTICLE V OF THE DELAWARE CONSTITUTION RELATING TO VOTING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend § 2, Article V of the Delaware Constitution by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 2. Qualifications for voting; members of the Armed Services of the United States stationed within State; persons disqualified; forfeiture of right.

(a) Every citizen of this State of the age of ~~21 years who shall have been a resident thereof 1 year next preceding an election, and for the last 3 months a resident of the county, and for the last 30 days a resident of the hundred or election district in which the citizen may offer to vote, and in which the citizen~~ 18 years or older who shall have been duly registered as hereinafter provided for, shall be entitled to vote at ~~such an~~ an election in the hundred or election district of which the citizen shall at the time be a resident, and in which the citizen shall be registered, for all officers that now are or hereafter may be elected by the people and upon all questions which may be submitted to the vote of the people; provided, however, that ~~no person who shall attain the age of 21 years after the first day of January in the year of our Lord, 1900, or after that date shall become a citizen of the United States, shall have the right to vote unless the person shall be able to read this Constitution in the English language and write the person's name; but these requirements shall not apply to any person who by reason of physical disability shall be unable to comply therewith; and provided also, that no person in the military, naval, or marine service of the United States shall be considered as acquiring a residence in this State, State by being stationed in any garrison, barrack, or military or naval place or station within this State; and no person adjudged mentally incompetent or person convicted imprisoned because of a conviction of a crime deemed by law felony, or incapacitated under the provisions of this Constitution from voting; a felony shall enjoy the right of an elector; and the General Assembly may impose the forfeiture of the right of suffrage as a punishment for crime: elector.~~

(b)(1) Any person who is disqualified as a voter because of the person is imprisoned due to a conviction of a crime deemed by law a felony shall have such disqualification removed upon being pardoned, or after the expiration of the sentence, imprisonment, whichever may first occur. ~~The term "sentence" as used in this Section shall include all periods of modification of a sentence, such as, but not limited to, probation, parole, and suspension. The provision of this subsection shall not apply to (1) those persons who were convicted of any felony of murder or manslaughter, (except vehicular homicide); or (2) those persons who were convicted of any felony constituting an offense against public administration involving bribery or improper influence or abuse of office, or any like offense under the laws of any state or local jurisdiction, or of the United States, or of the District of Columbia; or (3) those persons who were convicted of any felony constituting a sexual offense, or any like offense under the laws of any state or local jurisdiction or of the United States or of the District of Columbia.~~

(2) The removal of the disqualification must not be made contingent on monetary payments of any kind.

(c) As used in this Section:

(1) "Community supervision" means probation, parole, or early release.

(2) "Home confinement" means a form of intensive supervised custody outside of a correctional facility that restricts a person's freedom within a place of residence.

(3) "Imprisoned" or "imprisonment" means only actual periods of incarceration, including work release and home confinement, and does not include periods of community supervision.

(4) "Incarceration" means confinement in a correctional facility after conviction and sentencing for a crime deemed by a law a felony.

(5) "Work release" means allowing a person who is imprisoned to work outside a correctional facility and return to the correctional facility when not working.

Section 2. Amend § 7, Article V of the Delaware Constitution by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 7. Election offenses; penalties; self-incrimination.

Every person who either in or out of this State shall receive or accept, or offer to receive or accept, or shall pay, transfer, or deliver, or offer or promise to pay, transfer, or deliver, or shall contribute, or offer or promise to contribute, to another to be paid or used, any money or other valuable thing as a compensation, inducement or reward for the giving or withholding, or in any manner influencing the giving or withholding, a vote at any general, special, or municipal election in this State, or at any primary election, convention, or meeting held for the purpose of nominating any candidate or candidates to be voted for at such general, special, or municipal election; or who either in or out of this State shall make or

50 become directly or indirectly a party to any bet or wager depending upon the result of any such general, special, municipal,
51 or primary election or convention or meeting, or upon a vote thereat by any person; or who either in or out of this State
52 shall, by the use or promise of money or other valuable thing, or otherwise, cause or attempt to cause any officer of election
53 or registration officer to violate that person's official duty; or who either in or out of this State shall by the use or promise of
54 money or other valuable thing influence or attempt to influence any person to be registered or abstain from being registered;
55 or who, being an officer of election or registration officer, shall knowingly and wilfully violate that person's official duty;
56 or who shall by force, threat, menace, or intimidation, prevent or hinder, or attempt to prevent or hinder, any person
57 qualified for registration from being registered or any person qualified to vote from voting according to the person's choice
58 at any such general, special, or municipal election, shall be deemed guilty of a misdemeanor, and shall be fined not less
59 than \$ 100 nor more than \$5,000, or shall be imprisoned for a term not less than 1 month nor more than 3 years, or shall
60 suffer both fine and imprisonment within those limits, at the discretion of the court; ~~and shall further for a term of 10 years~~
61 ~~next following the person's sentence, be incapable of voting at any such general, special, municipal, or primary election or~~
62 ~~convention or meeting; but the penalty of disfranchisement shall not apply to any person making or being a party to any bet~~
63 ~~or wager, depending upon the result of any such general, special, municipal, or primary election or convention or meeting.~~
64 court. Every person charged with the commission while out of this State of any of the offenses enumerated in this Section,
65 and by this Section made punishable, whether committed in or out of this State, may be prosecuted under Section 8 of this
66 Article in any county in which the person shall be arrested on such charge. No person, other than the accused, shall, in the
67 prosecution for any offense mentioned in this Section, be permitted to withhold that person's own testimony on the ground
68 that it may criminate or subject the person to public infamy; but such testimony shall not afterwards be used against the
69 person in any judicial proceeding, except for perjury in giving such testimony.

SYNOPSIS

This Act is the first leg of an amendment to the Delaware Constitution that does all of the following:

(1) Under Section 1 of this Act, limits the loss of the right to vote of an individual who is convicted of a felony to the period during which the individual is imprisoned due to the felony, or until the individual is pardoned, whichever comes first.

(2) Brings Section 1 of this Act into conformity with the United States Constitution and federal law.

Section 1 of this Act specifically does all of the following:

(1) Removes the ability of the General Assembly to impose the forfeiture of the right of suffrage as a punishment for a crime.

(2) Removes the list of felonies resulting in permanent removal of the right to vote.

(3) Prohibits making the re-enfranchisement of an individual who is convicted of a felony contingent on the payment of a monetary payment of any kind.

(4) Defines terms related to imprisonment and community supervision.

(5) Updates the age at which a resident of this State is granted a right to vote to be 18 years or older, to conform the Delaware Constitution to the 26th Amendment to the United States Constitution.

(6) Removes the durational residency requirements necessary to qualify to vote in this State. Durational residency requirements have been found unconstitutional because these requirements infringe on both the constitutional right to vote and the constitutional right to travel. See *Dunn v. Blumstein*, 92 S. Ct. 995 (1972) (finding 1-year residency requirement in

a state and 3-month residency requirement in a county unconstitutional) and *Marston v. Lewis*, 93 S. Ct. 1211 (1973). A voter will still be required to be a resident at the time the voter registers.

(7) Removes the literacy test requirement to qualify to vote in this State. Literacy tests have been used to disqualify Blacks and individuals who are immigrants or poor. Because of the discriminatory use of, and often subjective nature of, literacy tests, literacy tests are prohibited under federal law, see 52 U.S.C. § 10501, and likely unconstitutional under the 14th or 15th Amendment to the United States Constitution, see *Oregon v. Mitchell*, 91 S. Ct. 260 (1970).

Section 2 of this Act removes the suspension of the right to vote as a punishment for violation of certain election offenses.

Amending the Delaware Constitution requires not only the passing of the changes in this Act, but also passage of the same changes after the next general election by the next General Assembly.

This Act requires a greater than majority vote for passage because § 1 of Article XVI of the Delaware Constitution requires the affirmative vote of two-thirds of the members elected to each house of the General Assembly to amend the Delaware Constitution.